

26STCV06903 26STCV06903

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Case Number: 26STCV06903 Hearing Date: July 15, 2026 Dept: 406

DAVID PORTILLO,

Plaintiff,

v.

FOX NORMANDIE APARTMENTS, L.P., et al.,

Defendants.

Case No.: 26STCV06903

Hearing Date: July 15, 2026

[TENTATIVE]

order RE:

defendants' demurrer and motion to
strike

BACKGROUND

On March 3, 2026, Plaintiff David

Portillo filed this action against Defendants Fox Normandie Apartments, LP and Community of Friends. The complaint asserts (1) breach of contract/covenant of quiet enjoyment/warranty of habitability, (2) tortious breach of the warranty of habitability, (3) negligence, (4) violation of Civil Code section 1942.4, (5) violation of the UCL, and (6) tenant harassment.

On June 16, 2026, Defendants filed the instant demurrer and motion to strike. Plaintiff filed an opposition on July 1, 2026. Defendants filed a reply on July 8, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Cary Decl.)

DISCUSSION

I.

Demurrer

a. Uncertainty

A demurrer for uncertainty is disfavored and is only granted “if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) A complaint does not need to be a “model of clarity” to survive a demurrer because most ambiguities can be clarified through discovery. (Ibid.)

Defendants argue that “[t]he Complaint is devoid of any facts regarding when Plaintiff’s tenancy began, when he experienced alleged conditions, and when Defendants were allegedly given notice of the alleged defects affecting Plaintiff. The extent of the defects are also not pled, and therefore whether these were material defective conditions is not sufficiently stated.” (Dem. 3:20-24.)

However, these are ambiguities that may be clarified in discovery. They are not factual deficiencies that detract from the adequacy of the pleading. For pleading purposes, the complaint sufficiently puts Defendants on notice of the nature of the claims. Therefore, the complaint is not uncertain.

b. Combined Causes of Action

Plaintiff’s first “cause of action” combines three causes of action: breach of contract, quiet enjoyment, and warranty of habitability. These are independent claims with distinct elements. Plaintiff argues that the covenant of quiet enjoyment and warranty of habitability are the contract terms which were breached. However, in that case, the breach of contract claim is duplicative of the other two claims. (See Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135 [a claim is duplicative if it “adds nothing to the complaint by way of fact or theory”].) Therefore, the demurrer is sustained as to breach of contract.

c. Statutory Claims

Defendants argue that the statutory claims (fourth and fifth causes of action) have not been pled with particularity. (See City of Los Angeles v. Superior Court (2021) 62 Cal.App.5th 129, 138.)

Civil Code Section 1942.4

Civil Code section 1942.4 prohibits a landlord from collecting rent under the following conditions: (1) the dwelling is uninhabitable under section 1941.1; (2) the landlord has been notified by a public officer or employee responsible for enforcement of housing law; (3) the conditions are not abated for 35 days after the notice without good cause; and (4) the conditions were not caused by the tenant.

The complaint specifically pleads all of these elements. (Compl. ¶¶ 60-65.) Defendants argue that “[t]he only facts alleged by Plaintiff in the 4th cause of action is that there were leaks in Plaintiff’s unit.” (Dem. 4:1-3.) However, the complaint alleges that the conditions included inadequate weather protection, inadequate plumbing, mold, poor sanitation, lack of heating and ventilation, vermin infestation, structural hazards, inadequate mechanical equipment, lack of safety, and harassment. (Compl. ¶ 60.) This is adequate for pleading purposes.

2.

UCL

Business and Professions Code section

17200 prohibits unlawful, unfair, or fraudulent business acts or practices.

Each of the three prongs is an independent basis for relief. (Smith v. State Farm Mutual Automobile Insurance Co. (2001) 93 Cal.App.4th 700, 718.)

Unlawful conduct is defined as any practice forbidden by law. (Farmers Ins. Exchange v. Superior Court (1992) 2 Cal.4th 377, 383.) UCL actions alleging unlawful conduct “borrow” from other statutes or common law causes of action outside Section 17200. (Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1383.)

Because Plaintiff has sufficiently pled a violation of Civil Code section 1942.4, breach of the covenant of quiet enjoyment, and breach of the warranty of habitability, those violations serve as a predicate for the UCL claim under the “unlawful” prong. Because the same facts underly each claim, the UCL claim has been pled with the requisite specificity.

d. Tenant Harassment

Los Angeles Municipal Code section 45.33

prohibits a landlord from engaging in "bad faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm." (LAMC § 45.33.) "Bad faith" refers to willful, reckless, or grossly negligent conduct." (Ibid.)

The code specifically identifies examples of tenant harassment, such as reducing housing services, failing to perform timely repairs, interfering with a tenant's right to enjoy the premises, engaging in any act that renders the premises unfit for habitation, or any other repeated act that substantially interferes with a tenant's comfort or peace. (Ibid.)

The complaint alleges sufficient facts to constitute tenant harassment. Whether Defendants' alleged conduct was in bad faith or directed at Plaintiff are questions of fact. The complaint alleges that the conduct was directed at Plaintiff, which must be assumed true. (See Compl. ¶ 80.) Therefore, the tenant harassment claim is adequately pled.

II.

Motion to Strike

a. Punitive Damages

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code, § 3294, subd. (a).) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Id., subd. (c)(1).) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Id., subd. (c)(2).) Fraud is "intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id., subd. (c)(3).)

Here, the complaint alleges a knowing failure to abate uninhabitable conditions despite repeated notice. This sufficiently establishes "willful and conscious disregard of the rights or safety of others" or "subject[ing] a person to cruel and unjust hardship." (See

Civ. Code, § 3294(c).) Therefore, the complaint properly prays for punitive damages.

b. Attorney's Fees

“Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties” (Code Civ. Proc., § 1021.) Thus, “[a]ttorney fees are not recoverable unless a fee award is expressly authorized by either statute or the parties’ contract.” (Ilshin Investment Co., Ltd. v. Buena Vista Home Entertainment, Inc. (2011) 195 Cal.App.4th 612, 627.)

Plaintiff alleges that he is entitled to attorney’s fees under the terms of the lease. (Compl. ¶ 52.) This is sufficient for pleading purposes. Whether and to what extent the alleged lease provides for attorney’s fees is a question of fact.

CONCLUSION

Defendants’ demurrer is SUSTAINED without leave to amend as to breach of contract and OVERRULED in all other respects. The motion to strike is DENIED.